

The Merchant Shipping (Forms of Licences) Rules, 1960

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Union of India - Act

The Merchant Shipping (Forms of Licences) Rules, 1960

UNION OF INDIA

India

The Merchant Shipping (Forms of Licences) Rules, 1960

Rule THE-MERCHANT-SHIPING-FORMS-OF-LICENCES-RULES-1960 of 1960

Published on 26 February 1960

Commenced on 26 February 1960

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[Note: The original publication document is not available and this content could not be verified.]

The Merchant Shipping (Forms of Licences) Rules, 1960

Published vide Noitfication Gazette of India, 1960 Part 2, Section 3(i), p.421.

G.S.R. 280, dated the 26th February, 1960. - In exercise of the powers conferred by Clause (a) of sub-section (2) of Section 414 of the Merchant Shipping Act, 1958 (44 of 1958

), and in supersession of the Control of Shipping (Forms of Licences) Rules, 1949 published with the Notificatiort of the Government of India, Department of Commerce No. 8-MIV (I)/49, dated the 29th October, 1949, the Central Government hereby makes the following rules, namely:-

1. Short title.
- These rules may be called the Merchant Shipping (Forms of Licences) Rules, 1960.

2.

Definitions.

- In these rules,

(a)

"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)

"Form" means a form set out in the Schedule to these rules.

3.

Forms of applications and licences.

- Every application for a licence specified in column 1 of the table below shall be made in the Form specified against it in column 2 of the said table and the licence, when granted, shall be in form specified in the corresponding entry in column 3 thereof.

Nature of licence

Form of application

Form of licence

1

2

3

Specified Voyage licence (Section 406)

Form A

Form B

General licence or specified period licence (Section 406)

Form C

Form D

Specified period licence (Section 407)

Form E

Form F

Specified voyage licence (Section 407)

Form G

Form H

Form A.

Schedule

Government of India in the Ministry of Transport and Communications

(Department of Transport)

Application for Specified Voyage Licence

under Section 406 of the Merchant Shipping Act, 1958

Name of Applicant.....

Address of Applicant.....

To

The Director General of Shipping,

Bombay.

Application is hereby made for a licence for the ship of which particulars are given below, to make a voyage in accordance with the details given. It is understood that the grant of a licence will be made without prejudice to any Navigation Order which may be made and will not exempt the ship from compliance with any other lawful requirements or directions affecting the ship or her cargo, passenger, stores, bunkers, equipment, etc.

Signature of Applicant.....

The signature must be that of the person having the management of the ship or a person duly authorised in that behalf by him.

Dated.....

Particulars of Ship

Name and official number.....Port of Registry.....Gross Tonnage.....Total Dead weight capacity (including bunkers).....Total cubic capacity of refrigerated space, if any.....

| Passenger

Cargo

Commencement of voyage:-

(a) Port of departure if in ballast

Estimated number and class of passengers from India

Description and Estimated quantity

Expected date of completion of voyage

(a) Expected date of sailing, if in ballast

(b) Loading port or port

(b) Expected date of loading, or readiness to load

(c) Destination (including options)

(d) Ports of call en route

1

2

3

4

5

(a)

(b)

(a)

(b)

(c)

(d)

This Form is to Be Completed and Lodged in Duplicate (see notes below)

Notes

1. In the event of any alteration in the intended voyage, the Form should be returned, together with a fresh application in duplicate.

2. The application should normally be made before the vessel commences loading.

Form B.

(Space reserved for Official use only)

Licence

(Section 406 of the Merchant Shipping Act, 1958)

Licence Number.....

This licence is granted in accordance with the particulars set out in the above application, subject to the limitations and conditions stated below and on the understanding that all relevant Regulations, Rules and Orders have been, are being or will be complied with.

This licence is issued for a single voyage fromto.....and shall remain valid from.....to.....or until revoked or modified earlier by the Director-General of Shipping. (Vide Section 408 of the Merchant Shipping Act, 1958).

This licence is to be produced to the Collector of Customs in making application for clearance from the port in India at which the voyage is commenced.

When this licence ceases to be valid, the licence shall, without unreasonable delay, return it or cause it to be returned to the Director-General of Shipping.

Bombay, dated.....

Director General of Shipping.

Form C.

Government of India in the Ministry of Transport and Communications

(Department of Transport)

Application for General or Specified period licence under Section 406 of the Merchant Shipping Act, 1958

Name of Applicant.....

Address of Applicant.....

To

The Director General of Shipping,
Bombay.

Application is hereby made for a general specified period licence for the ship of which particulars are given on the reverse, to ply in the trade (s) mentioned in column 9 of the said particulars. It is understood that the grant of a licence will be made without prejudice to any navigation Order made or to be made and will not exempt the ship from compliance with any other lawful requirements or directions affecting the ship or her cargo, passengers, stores, bunkers, equipments, etc. It is further understood that the owner (s) or time charterer (s) of the ship for which a licence is granted will on request forward to the Director General of Shipping such particulars as he may require with respect to the rate of freight, the nature and quantity of cargo carried, the number of passengers embarked, all other matters referred to in Section 413 of the Merchant Shipping Act, 1958 and conditions of carriage for each voyage made or proposed to be made by the ship under the licence.

To be filled in only when a licence for a specified period is applied for;

[The licence is required for a period of]

[otherwise this sentence to be scored out.]

.....months from.....

Signature of Applicant.....

The Signature must be that of the person having the management of the ship or a person duly authorised in that behalf by him.

Dated.....

Particulars of Ships

Name of Vessel

Name of Address of-

(a) Owners

Office Number

Port of Registry

Gross Tonnage

Total bale cub capacity

(a) Number of holds and dead weight capacity of each

(a) Trade

(b) Time Charterers if any stating duration of charter ...

Total dead weight capacity including bunkers

(b) Special trade (if any) in which ship will be wholly or partly engaged, and

(c) Specified period

1

2

3

4

5

6

7

8

9

(a)

...

...

...

...

(a)

...

(a)

(b)

...

...

...

...

(b)

...

(b)

...

...

...

...

...

...

...

(c) For a period ofmonths

This Form is to be Completed and Lodged in Duplicate (see Note below)

Note

If the application is granted the licence should be forwarded to the Master for retention on board the ship.

Form D.

(Space reserved for Official use only.)

Licence Number.....

Licence (Section 406 of the Merchant Shipping Act, 1958.)

This Licence is granted in accordance with the particulars set out in the above application, subject to the limitations and conditions stated below and on the understanding that all relevant Regulations, Rules and Orders have been, are being, or will be complied with.

This Licence is to be produced to the Collector of Customs in making application for clearance for each voyage from an Indian port, and remains valid up to.....or until revoked or modified earlier by the Director General of Shipping, vide Section 408 of the Merchant Shipping Act, 1958.

Director General of Shipping

Form E.

Government of India in the Ministry of Transport and Communications

(Department of Transport)

Application for Specified Period Licence under Section 407 of the Merchant Shipping Act, 1958

Name of Applicant.....

Address of Applicant.....

To

The Director General of Shipping,

Bombay.

Application is hereby made for a Licence for a Specified Period for the ship, particulars of which are given below to ply in the Coasting Trade of India as defined in Cl. (2) of Section 3 of the Merchant Shipping Act, 1958.

The licence is required for a period of.....months from.....

Signature of Applicant.....

The Signature must be that of the person having the management of the ship or a person duly authorised in that behalf by him.

Date.....

Particulars of Ship

Name of Vessel

Name of Address of-

(a) Owners

Office Number

Port of Registry

Gross Tonnage

Total bale cubic capacity

(a) Number of holds and dead weight capacity of each

Loaded Draft

(b) Time Charterers (if any) stating duration of charter

(b) Total dead weight capacity including bunkers

1

2

3

4

5

6

7

8

(a)

...

...

...

...

(a)

(b)

...

...

...

...

(b)

This Form is to be Completed and Lodged in Duplicate (See Note Below)

Note

If the application is granted the licence should be forwarded to the Master for retention on board the ship.

Form F.

(Space reserved for Official use only.)

Licence (Section 407 of the Merchant Shipping Act, 1958.)

Licence Number.....

This Licence is granted in accordance with the particulars set out in the above application, subject to the limitations and conditions stated below.

(1)

This Licence shall remain valid from.....to.....or until revoked or modified earlier by the director General of Shipping, vide Section 408 of the Merchant Shipping Act, 1958.

(2)

When this Licence ceases to be valid, the licensee shall, without unreasonable delay, return it or cause it to be returned to the Director General of Shipping.

(3)

That all relevant regulations, rules and orders in respect of the ship and/or cargo passengers have been, are being or will be complied with. Bombay, dated.....

Director General of Shipping.

Form G.

Government of India in the Ministry of Transport and Communications

(Department of Transport)

Application for Specified voyage licence under Section 407 of the Merchant Shipping Act, 1958

Name of Applicant.....

Address of Applicant.....

To

The Director General of Shipping,

Bombay.

Application is hereby made for a Specified Voyage Licence for the ship, particulars of which are given below to lift cargo/passengers as detailed overleaf in the Coasting Trade of India as defined in cl. 92) of Section 3 of the Merchant Shipping Act, 1958.

Signature of Applicant.....

The Signature must be that of the person having the management of the ship or a person duly authorised in that behalf by him.

Date.....

Particulars of Ship

Vessel

(a) Name

(a) Name and address of owner

(a) Voyage for which licence is required

(b) Port of Registry

(b) Time Charterer (if any) stating duration of charter

(b) Expected date of Loading or Embarkation

(c) G.R.T.

(c) Voyage or Trip Character (if any)

(c) Expected date of completion of voyage.

1

2

3

(a)

...(a)

(a)

(b)

...(b)

(b)

(c)

...(c)

(c)

Form H.

(Space reserved for official use only).

Licence Number.....

Licence

(Section 407 of the Merchant Shipping Act, 1958)

This Licence is granted in accordance with the particulars set out in the above application, subject to the limitations and conditions stated below.

(1)

This Licence is issued for a single voyage from.....to..... and shall remain valid from.....or.....or until revoked or modified earlier by the director General of Shipping, vide Section 408 of the Merchant Shipping Act, 1958.

(2)

When this Licence ceases to be valid, the licensee shall, without unreasonable delay, return it or cause it to be returned to the Director General of Shipping.

(3)

That all relevant regulations, rules and orders in respect of the ship and/or cargo passengers have been, are being or will be complied with.

Bombay, dated.....

Director General of Shipping.

Details of Cargo/Passengers

Port of Loading or Embarkation

Port of Discharge Disembarkation

Particulars regarding

Cargo Particulars

Additional Particulars required in respect of Transshipment
cargo

Remarks

(a)

(b)

(c)

(a)

(b)

(c)

Description

marking

Quantity & weight in D.W. Tons

Original port of shipment

Name of original carrier with name and address of
owners/Chaterers

Date on which cargo over landed in Indian port

1

2

3

4

5

6

7

8

9

10

The Form is to be Completed and Lodged in Duplicate

Note

If the application is granted the licence should be forwarded to the Master for retention on board the ship.

[Min. of Transport and Communications, No. 30-M.L. (8)/59.]

Related AI tags, queries and research notes

Translation